DEED OF CONFIDENTIALITY AND RESTRAINT OF TRADE

THIS DEED OF CONFIDENTIALITY AND RESTRAINT OF TRADE is made on the _____ (day) of

_____(month) 20_____ (year).

BETWEEN:

TRICAB (AUSTRALIA) PTY LTD (ACN 006 373 824) of 33 Prohasky Street,

Port Melbourne (the "Company"),

and

_____ (Insert Full Name) of

_____ (Insert Address)

(referred to as the "Employee")

RECITALS

A. The Company is engaged in the manufacture of wires and cables and cable accessories (the "Business").

B. The Company intends to expose the Employee to Confidential Information.

C. In consideration of the Company exposing to the Employee the Confidential Information, the Employee has agreed to the following terms.

NOW THE PARTIES AGREE as follows:

1 CONFIDENTIALITY

1.1 Confidential Information

In the course of the Employee's employment, the Employee will become privy to Confidential Information of the Company or its Clients, which includes but is not limited to information in written, computerized or oral form.

1.2 Obligation of confidence

The Employee will, both during their employment and for so long as the Confidential Information remains confidential after the termination of their employment:

(1) not at any time, either directly or indirectly, disclose or communicate to any person any Confidential Information that may come to their knowledge during or in the course of the employment, unless expressly authorised by the Company or required by law or court order;

(2) use their best endeavors to prevent disclosure or publication of the Confidential Information where that disclosure or publication is not authorised by the Company;

(3) if required by law or court to disclose any Confidential Information, advise the Company of that fact and take all lawful steps to confine disclosure of the Confidential Information and preserve its confidentiality, including steps to allow the Company or its agents to do so;

(4) not use or attempt to use Confidential Information for their own purposes or for any purposes other than for the purposes of the Company or in any manner which may injure or cause loss directly or indirectly to the Company and/or its business;

(5) subject to the terms of any further agreement between the Employee and the Company, upon receipt of a written request from the Company at any time, the Employee must return to the Company all copies of the Confidential Information however embodied or recorded or, at the direction of the Company, destroy or permanently delete from any storage system all copies of the Confidential Information; and

(6) acknowledge and agree that, without prejudice to any other remedy that the Company may have, the Company in addition to damages will be entitled to injunctive and other equitable relief to prevent or cure any breach or threatened breach of this clause (to be determined by court).

2 RESTRAINT

2.1 Restraint

Unless the Employee has the express written consent of the Company:

(1) Following termination of employment with the Company for any reason the Employee must not work or otherwise be involved in the Business for such time as the Company elects and for such time as the Company pays to the Employee an amount of the Employee's salary. This also applies for such time as pay in lieu of notice or termination is provided to the Employee.

(2) Following termination of employment with the Company for any reason the Employee must not work or otherwise be involved in the Business in Australia for one month.

(3) Following termination of employment with the Company for any reason the Employee must not work or otherwise be involved in the Business in Australia for two months.

(4) Following termination of employment with the Company for any reason the Employee must not work or otherwise be involved in the Business in Australia for three months.

(5) Following termination of employment with the Company for any reason the Employee must not work or otherwise be involved in the Business in Australia for six months.

(6) For six (6) months following termination of employment with the Company for any reason the Employee must not work or otherwise be involved in the Business in Australia to any Customer or Client of the Company.

(7) For six (6) months following termination of employment with the Company for any reason the Employee must not solicit or attempt to solicit or persuade any Supplier of the Company to reduce dealing with the Company.

(8) For six (6) months following termination of this contract for any reason the Employee must not solicit or attempt to solicit or persuade any employee or contractor of the Company to cease to be employed or contracted by the Company.

(9) Each of the above sub-clauses are separate and distinct clauses and if any one clause is invalid then the remaining clauses shall continue to operate.

3 INTELLECTUAL PROPERTY

3.1 Acknowledgements

The Employee acknowledges and agrees that:

(1) all intellectual and industrial property rights in Confidential Information and any modifications and enhancements to Confidential Information are owned by the Company;

(2) any Inventions or Works created during and in the course of the employment and the entire copyright throughout the world in all Works are owned by the Company;

(3) the Company owns absolutely all Inventions and Works created during and in the course of employment and without further payment by the Company to the Employee and to the extent necessary, the Employee irrevocably assign to the Company all of his/her present and future rights, title and interests in and to all Inventions and Works;

(4) The Employee must immediately disclose to the Company (and to no other person) all the details of any Inventions or Works created by the Employee during your employment; and

(5) The Employee must sign all documents and do all acts and things requested to give effect to the provisions of this clause.

4 BREACH

Without prejudice to any other remedy that the Company may have, in the event of a breach or threatened breach of the terms of this deed by the Employee, the Company shall be entitled to damages and an injunction restraining the Employee from committing any breach of this deed (to be determined by court).

5 OBLIGATION SHALL SURVIVE

The obligations of the Employee under this deed shall survive the finalisation or discontinuance by the Employee of its employment.

6 DEFINITIONS AND INTERPRETATION

6.1 In this agreement:

(1) 'Client' or 'Customer' means any person who is or was a Client of the Company with whom in the course of the last 24 months of the Employee's employment the Employee has or has had dealings;

(2) 'Company' means TriCab (Australia) Pty Ltd ACN 006 373 824, its parent, subsidiary and associated companies;

(3) 'Confidential Information' includes all information however obtained, recorded or retained, whether oral, written, electronically or otherwise stored and about all or any of the following:

(a) information, ideas, concepts, studies, research and know how related to the Company, the Business, or business assets including the number, price of, nature or mix of products or services provided by the Company;
(b) ideas or concepts of any employee of the Company shared with or disclosed to the Employee;
(c) the affairs of the Company;
(d) arrangements between the Company and
i. the Employee; and
ii. any person other than the Employee;
(e) any Client or any other person who the Company or the Employee have approached or canvassed during the Employee's employment as a potential Client, including their names, addresses, requirements and preferences concerning the products or services produced or that may reasonably be provided by or through the Company;
(f) trade secrets of the Company;
(g) marketing information, business plans or strategies;
(h) Customer lists;
(i) Designs or Technical Drawings, Computer Software and Programs;
(j) the management, policies, strategies, methods, techniques, practices and procedures of the Company including the training of its personnel;
(k) any other information or communication that the Company notifies the Employee as being confidential;
(l) intellectual property;
(m) the financial position of the Company and in particular includes information relating to the assets or liabilities, revenue and expenses of the Company and any other matter that does or may affect the financial position or reputation of the Company including but not limited to;
(n) manufacturing processes and alloys and methods used in manufacturing; and

does not include anything in the public domain.

(4) 'Invention' means all Inventions, discoveries and novel designs;

(5) 'Supplier' means any person who supplies goods or services to the Company with whom in the course of the last 24 months of the Employee's employment both the Company and Employee have dealings;

(6) 'Works' means all Works and other subject matter in which copyright exists.

(7) the singular includes the plural and vice versa;

(8) a reference to an individual or person includes a corporation, partnership, joint venture, association, authority, trust, state or government and vice versa;

(9) a reference to any gender includes all genders;

(10) a reference to a recital, clause, schedule, annexure or exhibit is to a recital, clause, schedule, annexure or exhibit of or to this agreement;

(11) a recital, schedule, annexure or description of the parties forms part of this agreement;

(12) where an expression is defined, another part of speech or grammatical form of that expression has a corresponding meaning;

(13) a reference to a 'related body corporate' of a body corporate is to a body corporate which is related to that body corporate within the meaning of s 50 of the Corporations Law;

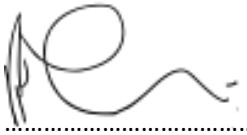
(14) where an expression is defined anywhere in this agreement it has the same meaning throughout;

(15) the Employee must treat the existence and terms of this agreement confidentially and no announcement or communication relating to the negotiations of the parties or the existence, subject matter or terms of this agreement may be made or authorised by a party unless the other parties have first given their written approval.

(16) This agreement may only be amended or supplemented in writing, signed by the parties.

EXECUTED as a deed the day and year hereinbefore written.

EXECUTED by TRICAB (AUSTRALIA) PTY LTD by)
being signed by the person who is authorised to sign)
for the Company:)



……
Mr. Allan Greenfield

Sole Director and Sole Company Secretary
33 Prohasky St, Port Melbourne 3207

SIGNED SEALED AND DELIVERED by the) …….
(Date and signature)

Said (Name) _____ in the presence of:

(Witness Name) ……

(Witness Signature) ……